

**Court No. - 40**

**Case :-** WRIT - C No. - 38724 of 2022

**Petitioner :-** Ashraf Ali

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Aijaz Ahmad Khan, Raj Kumar Kesari

**Counsel for Respondent :-** C.S.C., Narendra Kumar Tiwari

**Hon'ble Mahesh Chandra Tripathi, J.**

**Hon'ble Vivek Kumar Singh, J.**

Heard learned counsel for the petitioner, learned Standing Counsel for the State respondents and Shri N.K. Tiwari, learned counsel for Electricity Department.

The petitioners have preferred this writ petition with prayer to direct the respondents to give new connection to the petitioner in his premises being House no.B-1105 G.T.B. Nagar, Kareli, Prayagraj.

Sri N.K. Tiwari, learned counsel for Electricity Department submits that there is outstanding dues of electricity over the plot in question and as per Clause 4.3 of U.P. Electricity Supply Code 2005 without clearing the same, no new connection can be provided.

Learned counsel for the petitioners submits that the petitioner is intended to clear the outstanding amount of Rs.1,16,255/- in easy installments as per provision 6.14 of U.P. Electricity Supply Code 2005.

Learned counsel for the Electricity Department has not objected the prayer. He submits that the Department is interested in realizing the entire due amount. In case the petitioner deposits some amount showing his bonafide, there shall be no hassle in providing new electricity connection to the petitioner.

Be that as it may, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is disposed off with observations that in case the petitioner deposits a sum of Rs.35,000/- within two weeks from today, the respondents are directed to provide new electricity connection to the petitioner and thereafter shall fix easy installments under Clause 6.14 of U.P. Electricity Supply Code 2005.

**Order Date :-** 9.2.2023

A. Pandey